

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #07	CCRB Case #: 202202364	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/06/2022 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/6/2023	Precinct: 120		
Date/Time CV Reported Thu, 04/14/2022 8:05 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 04/14/2022 8:05 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Rudy Anzalone	05617	945472	INT FIO PRG
2. DT3 Brad Parascandolo	09164	967402	INT FIO PRG
3. DT3 Steven Lopez	04354	943498	INT FIO PRG
4. SGT Sean Dawson	01163	948856	INT FIO PRG
5. PO Matthew Giacalone	06379	958625	INT FIO PRG

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Brad Parascandolo	Abuse: Detective Brad Parascandolo stopped § 87(2)(b)	A . Substantiated
B . SGT Sean Dawson	Abuse: Sergeant Sean Dawson searched § 87(2)(b)	B . Substantiated
C . DT3 Brad Parascandolo	Abuse: Detective Brad Parascandolo searched § 87(2)(b)	C . Substantiated
D . DT3 Rudy Anzalone	Abuse: Detective Rudy Anzalone failed to provide § 87(2)(b) with a business card.	D . Substantiated
E . DT3 Brad Parascandolo	Abuse: Detective Brad Parascandolo failed to provide § 87(2)(b) with a business card.	E . Substantiated
F . DT3 Steven Lopez	Abuse: Detective Steven Lopez failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . SGT Sean Dawson	Abuse: Sergeant Sean Dawson failed to provide § 87(2)(b) with a business card.	G . Substantiated
H . PO Matthew Giacalone	Abuse: Police Officer Matthew Giacalone failed to provide § 87(2)(b) with a business card.	H . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On April 14, 2022, § 87(2)(b) of the Legal Aid Society filed this complaint with the CCRB on behalf of § 87(2)(b) via the CCRB's Online Website.

At approximately 6:30 p.m. on April 6, 2022, § 87(2)(b) was walking home with friends when two unmarked police vehicles stopped on the street in front of § 87(2)(b), Staten Island. Sergeant Sean Dawson and Detective Rudy Anzalone of Field Intelligence for the 120th Precinct exited the first vehicle, then Police Officer Matthew Giacalone, and Detectives Brad Parascandolo and Steven Lopez of Field Intelligence for the 120th Precinct exited the second vehicle. The five officers stopped § 87(2)(b) (**Allegations A: Abuse of Authority – Substantiated**) because Det. Parascandolo allegedly observed § 87(2)(b) on a TARU camera and suspected he was armed. Sgt. Dawson searched § 87(2)(b) sweater pockets, then removed a fanny pack § 87(2)(b) had on his chest and searched its contents (**Allegation B: Abuse of Authority – Substantiated**). After he searched it, Sgt. Dawson handed the fanny pack to Det. Parascandolo, who then conducted a second search of the bag (**Allegation C: Abuse of Authority – Substantiated**). Nothing was recovered from § 87(2)(b) person or his bag. After the search, the officers approached their vehicles to leave the location, without issuing § 87(2)(b) a business card before doing so (**Allegations D-H: Abuse of Authority – Substantiated**). The officers left the location without further incident, and no arrests or summons were issued.

Sgt. Dawson, Det. Anzalone, PO Giacalone, and Det. Lopez made BWC recordings during the incident; § 87(4-b), § 87(2)(g)

Four Body-worn Camera (BWC) videos were yielded (Board Review 01-04). Two cell phone videos were provided by § 87(2)(b) (Board Review 06 and 07). TARU footage was obtained from a camera at the intersection of § 87(2)(b) and § 87(2)(b) (Board Review 08).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Brad Parascandolo stopped § 87(2)(b)

§ 87(2)(b) was walking home with a group of friends, who § 87(2)(b) declined to identify, when an unmarked police vehicle pulled alongside them. Det. Anzalone and Sgt. Dawson exited the vehicle and approached § 87(2)(b) while simultaneously a second unmarked police vehicle arrived and stopped. Det. Parascandolo, Det. Lopez, and PO Giacalone exited the second vehicle. Neither police vehicle had lights or sirens activated. Det. Anzalone and Sgt. Dawson isolated § 87(2)(b) from his group of friends by placing their hands on § 87(2)(b) shoulders and pushing him back against a fence that was behind him, causing § 87(2)(b) to be unable to move. None of § 87(2)(b) friends were stopped or touched. Neither Det. Anzalone nor Sgt. Dawson said anything to § 87(2)(b) or made any verbal directives. § 87(2)(b) was not told why he was being stopped and was unable to move. § 87(2)(b) friends began recording the encounter on their cell phones (Board Review 09).

Sgt. Dawson, Det. Anzalone, Det. Parascandolo, Det. Lopez, and PO Giacalone § 87(2)(g) were all at their desks inside the 120th Precinct Stationhouse when Det. Parascandolo alerted them that he had seen an individual on an ARGUS camera that he believed to be carrying a firearm.

PO Parascandolo stated he was watching an ARGUS camera which was in the vicinity of § 87(2)(b)

§ 87(2)(b) though he did not recall the specific camera location. PO Parascandolo was not looking for anything specific and was not directed to view ARGUS cameras by anyone, stating that this was routine for his Field Intelligence duties. On the ARGUS camera, PO Parascandolo observed § 87(2)(b) walking with four or five other individuals. Det. Parascandolo denied recalling what § 87(2)(b) was wearing but that he was first alerted to § 87(2)(b) because he had on a black, “heavy fanny pack” around his chest. Det. Parascandolo saw an “L” shaped outline inside the fanny pack which Det. Parascandolo believed to be a gun because of the shape and estimated weight of the fanny pack. Det. Parascandolo zoomed in on the ARGUS camera and stated this further reinforced his belief that there was a gun in the fanny pack, but Det. Parascandolo denied being able to approximate how far away the ARGUS camera was from § 87(2)(b) and was unable to describe the vantage point of the footage. Det. Parascandolo denied being familiar with or knowing who § 87(2)(b) was prior to the incident. Det. Parascandolo observed § 87(2)(b) ‘pacing around’ and adjusting his fanny pack while Det. Parascandolo watched him on the ARGUS camera for approximately 20 minutes prior to alerting the other officers, but § 87(2)(b) was not seen engaging in any criminal acts during that time frame and neither § 87(2)(b) nor his companions were suspected of any criminal activity by Det. Parascandolo. Det. Parascandolo never saw § 87(2)(b) open the fanny pack or remove any contents from it, nor did he observe any other bulges on § 87(2)(b). After watching § 87(2)(b) for approximately 20 minutes, Det. Parascandolo alerted Sgt. Dawson, Det. Anzalone, Det. Lopez, and PO Giacalone that he had seen an individual on ARGUS that he believed to be carrying a weapon. No other officer reviewed the footage or took any investigatory measures.

Sgt. Dawson directed the officers to canvas for and stop § 87(2)(b) based on Det. Parascandolo’s intelligence and description of § 87(2)(b). No officer recalled what description Det. Parascandolo provided for § 87(2)(b) beyond him carrying a fanny pack. Sgt. Dawson and Det. Anzalone entered one police vehicle and Det. Parascandolo, PO Giacalone, and Det. Lopez entered a second vehicle, then all five officers began canvassing the vicinity of § 87(2)(b) for § 87(2)(b). No officer stayed at the stationhouse and continued reviewing the ARGUS footage or maintained eyes on § 87(2)(b) while Sgt. Dawson, Det. Anzalone, Det. Lopez, Det. Parascandolo, and PO Giacalone canvased. Sgt. Dawson and Det. Anzalone first observed § 87(2)(b) when he was walking with his friends in front of § 87(2)(b), approximately seven minutes after leaving the stationhouse. Sgt. Dawson alerted Det. Anzalone to § 87(2)(b) and directed Det. Anzalone to stop the police vehicle, then both officers exited and approached § 87(2)(b). Neither Sgt. Dawson nor Det. Anzalone observed any bulges on § 87(2)(b) upon first seeing him walking on the street, nor did they see any bulges when they approached § 87(2)(b). Sgt. Dawson and Det. Anzalone approached § 87(2)(b) each officer grabbed one of § 87(2)(b) arms to stop him from moving, and immediately isolated § 87(2)(b) from his friends. Sgt. Dawson did not recall if he observed an L-shaped bulge in the fanny pack but stated the bag was approximately 5 inches by 5 inches and appeared “full.” Sgt. Dawson stated that he did not have any reason to suspect § 87(2)(b) was armed beyond the intelligence that PO Parascandolo had provided, and Sgt. Dawson did not suspect § 87(2)(b) or his friends of any criminality when he stopped him (Board Review 10-14).

§ 87(2)(g)

TARU footage from a camera located at § 87(2)(b) and § 87(2)(b) captures the incident in its totality. At the 59:56 time stamp, § 87(2)(b) and four unknown individuals enter the frame, walking southbound on § 87(2)(b). When § 87(2)(b) first becomes visible on the TARU footage, he and his companions are nine car lengths from the camera and no distinguishing

clothing or features are visible on § 87(2)(b) or his companions. § 87(2)(b) and his friends continue walking for approximately two minutes, no criminal activity is captured. § 87(2)(b) and his companions cross the street to stand in front of § 87(2)(b). The TARU operator adjusts the camera to follow § 87(2)(b) and his companions' movement. At the 1:02:26 time stamp, an unmarked vehicle stops in front of § 87(2)(b) Sgt. Dawson and Det. Anzalone exit and immediately approach § 87(2)(b) Sgt. Dawson and Det. Anzalone grab § 87(2)(b) arms and push him backward toward a fence which is behind him, isolating § 87(2)(b) from his companions and completely restricting his movement. At the 1:02:34 time stamp, the TARU operator zooms in on § 87(2)(b) Sgt. Dawson, and Det. Anzalone. Det. Anzalone removes § 87(2)(b) fanny pack, which was not visible in any portion of TARU footage until the bag is removed from § 87(2)(b) person. At the 1:03:08 time stamp, a second unmarked vehicle arrives, and Det. Parascandolo, Det. Lopez, and PO Giacalone exit and then approach § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Det. Parascandolo was shown the above referred TARU footage during his CCRB interview and Det. Parascandolo stated that the investigation's footage did not come from the camera he was viewing on the incident date, but that it was generally consistent with that which he viewed and alerted his fellow officers about. Det. Parascandolo was unable to identify the ARGUS camera location that he viewed footage from on the incident date, and that footage was not obtained by the investigation.

BWC video from Sgt. Dawson captures him and Det. Anzalone arrive at the location and stop § 87(2)(b) Beginning at the 00:54 time stamp, Sgt. Dawson exits his police vehicle and approaches § 87(2)(b) At 01:01 time stamp, Det. Anzalone is seen holding both § 87(2)(b) forearms and pushing him toward the fence. Sgt. Dawson approaches Det. Anzalone and § 87(2)(b) and § 87(2)(b) fanny pack can be seen in full clarity from one arm's length away from Sgt. Dawson. The fanny pack is rounded and appears full, but there are no visible bulges or "L-shaped" protrusions. Sgt. Dawson proceeds to grab § 87(2)(b) arm and removes the fanny pack from his person (Board Review 02).

Cell phone video captured by § 87(2)(b) companions begin after § 87(2)(b) has been stopped and do not capture the inception of the incident (Board Review 06 and 07).

NYPD Patrol Guide 212-11 finds that when a persons' freedom of movement is restricted and they are temporarily detained, is it categorized as a Level III encounter, or a Terry Stop. Such enforcement must be rooted in reasonable suspicion that the person has committed, is committing or is about to commit a felony or Penal Law misdemeanor, at which point the member of service may stop and detain for the purpose of conducting a criminal investigation. Reasonable suspicion exists when the information known to the member of the service would make an ordinarily prudent and cautious police officer under the circumstances believe that a felony or Penal Law misdemeanor has been, is being or is about to be committed. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct. The officer must be able to articulate specific facts establishing justification for the stop; hunches or gut feelings are not sufficient (Board Review 16). Patrol Guide 212-11 derives its legal precedent from People v. De Bour, 40 N.Y.2d 210 (Board Review 22).

Terry v. Ohio, 392 U.S. 1 finds that whenever a police officer accosts an individual and restrains his freedom to walk away, he has "seized" that person. It is a serious intrusion upon the sanctity of the person, and it is not to be undertaken lightly (Board Review 23).

Floyd v. City of New York, 959 F. Supp. 2d 540 finds that at minimum, the officer making a Terry stop must be able to articulate something more than an inchoate and unparticularized suspicion or hunch. That is, police must be able to point to specific and articulable facts which, taken together with rational inferences from those facts, reasonably warrant the intrusion on a citizen's liberty interest. Reasonable suspicion is an objective standard; hence, the subjective intentions or motives of the officer making the stop are irrelevant (Board Review 24).

It is undisputed that Det. Parascandolo initiated § 87(2)(b) stop while at the stationhouse when Det. Parascandolo alerted his fellow officers that he believed § 87(2)(b) was carrying a firearm in his fanny pack. Det. Parascandolo's belief was based on ARGUS footage which was consistent with TARU footage obtained by the investigation. As seen in said footage, § 87(2)(b) is wearing a black sweatshirt with a black fanny pack around his chest, the two of which do not have definable contours because of the like color of the clothing and the vantage point of the camera. No bulges are visible on § 87(2)(b) and no specific shapes can be seen within § 87(2)(b) fanny pack. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended **Allegation A** be **Substantiated**.

Allegation (B) Abuse of Authority: Sergeant Sean Dawson searched § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Brad Parascandolo searched § 87(2)(b)

While Det. Anzalone held onto § 87(2)(b) arms, Sgt. Dawson removed the fanny pack that was around § 87(2)(b) chest. Sgt. Dawson opened the bag and searched inside by placing his hand inside the largest pocket. The fanny pack contained § 87(2)(b) house keys and cell phone. Sgt. Dawson did not remove anything from the fanny pack and then handed the fanny pack to Det. Parascandolo. Det. Parascandolo searched the fanny pack himself, looking inside both pockets of the fanny pack. Det. Parascandolo did not remove anything from the fanny pack. While Det. Parascandolo was searching § 87(2)(b) fanny pack, Sgt. Dawson searched § 87(2)(b) by sticking his hands inside § 87(2)(b) sweater and pants pockets, which § 87(2)(b) stated were empty. Nothing was recovered from § 87(2)(b) person. After Sgt. Dawson and Det. Parascandolo finished searching § 87(2)(b) fanny pack and person, Det. Parascandolo handed § 87(2)(b) back his fanny pack and then the officers began to walk back toward their police vehicles (Board Review 09).

Sgt. Dawson stated that after stopping § 87(2)(b) he removed the fanny pack from § 87(2)(b) chest. Once removed, Sgt. Dawson squeezed the outside of the fanny pack and stated that it felt 'full', but Sgt. Dawson denied knowing if upon feeling the outside of the fanny pack, he believed there to be a weapon inside. After feeling the outside of the fanny pack, Sgt. Dawson opened the bag and looked inside. The fanny pack contained "a large amount" of marijuana, though Sgt. Dawson denied recalling the amount or how it was packaged. After searching the fanny pack, Sgt. Dawson handed the bag to Det. Parascandolo who then conducted a second search of the fanny pack. Sgt. Dawson stated he handed the bag to Det. Parascandolo to conduct a second search because Det. Parascandolo had observed § 87(2)(b) originally on the ARGUS camera and may be better able to see the contents of the bag or what he was looking for. Sgt. Dawson initially denied searching § 87(2)(b) person but upon being shown his BWC video during his CCRB

interview, Sgt. Dawson confirmed he entered his hand into § 87(2)(b) sweater pocket but stated that he did not consider the entry into the sweater to be a search because nothing was removed. After Det. Parascandolo returned § 87(2)(b) fanny pack to him, Det. Parascandolo, Sgt. Dawson, Det. Anzalone, Det. Lopez, and PO Giacalone approached and reentered their vehicles (Board Review 13).

Det. Parascandolo stated that after § 87(2)(b) was stopped, his fanny pack was removed and an officer handed it to Det. Parascandolo, though Det. Parascandolo denied recalling which officer removed the fanny pack and handed it to him. After obtaining the fanny pack, Det. Parascandolo searched the contents because of the “L-shaped” bulge he observed on the ARGUS camera, but Det. Parascandolo denied recalling if he had reason to suspect the fanny pack contained a firearm upon arriving on the scene. Upon searching the bag, Det. Parascandolo denied recalling the contents but stated it did not contain a firearm. Det. Parascandolo handed the bag back to § 87(2)(b). Det. Parascandolo denied recalling if any officer beside himself searched the fanny pack and denied recalling if Sgt. Dawson searched the fanny pack. Det. Parascandolo denied recalling if § 87(2)(b) person was ever searched and denied that he searched § 87(2)(b) person. After the fanny pack was handed back to § 87(2)(b) Det. Parascandolo, Sgt. Dawson, Det. Anzalone, Det. Lopez, and PO Giacalone approached and reentered their vehicles (Board Review 11).

TARU footage, beginning at the 1:02:47 time stamp, shows Sgt. Dawson remove § 87(2)(b) fanny pack. Sgt. Dawson appears to touch § 87(2)(b) torso and legs, but it is not captured where Sgt. Dawson’s hands are at this time or if any pockets are entered. At the 1:03:30 time stamp, Sgt. Dawson appears to open § 87(2)(b) fanny pack and look inside. At the 1:03:41 time stamp, Sgt. Dawson hands the fanny pack to Det. Parascandolo. Due to the vantage point, it is not captured on the TARU footage what Det. Parascandolo does with § 87(2)(b) fanny pack after obtaining it because Det. Anzalone is standing in front of him. At the 1:04:11 time stamp, Det. Parascandolo hands § 87(2)(b) back his fanny pack and Det. Parascandolo, Det. Lopez, Det. Anzalone, PO Giacalone, and Sgt. Dawson approach their vehicles without further interaction with § 87(2)(b) (Board Review 27).

BWC video from Sgt. Dawson, beginning at the 01:01 time stamp, captures Sgt. Dawson exit his police vehicle and approach § 87(2)(b) and § 87(2)(b) fanny pack can be seen in full clarity from one arm’s length away from Sgt. Dawson. The fanny pack is rounded and appears full, but there are no visible bulges or “L-shaped” protrusions. At the 01:07 time stamp, Sgt. Dawson squeezes the outside of § 87(2)(b) fanny pack while it is still around his chest, a crunching plastic sound can be heard on the BWC video and there does not appear to be any hard objects inside the bag as Sgt. Dawson squeezes it several times. Sgt. Dawson removes the fanny pack from § 87(2)(b) chest. At the 01:31 time stamp, Sgt. Dawson squeezes the outside of § 87(2)(b) sweater pocket and touches his pants pockets, then at the 01:44 time stamp, Sgt. Dawson reaches into § 87(2)(b) sweater pocket but does not remove anything. At the 01:54 time stamp, Sgt. Dawson opens § 87(2)(b) fanny pack and looks inside; it is not captured on any BWC video what the fanny pack has inside. At the 02:03 time stamp, Sgt. Dawson hands § 87(2)(b) fanny pack to Det. Parascandolo. Det. Parascandolo squeezes the outside of the fanny pack then at the 02:10 time stamp, unzips the bag and looks inside, appearing to move the contents around with his hand. At the 02:30 time stamp, Det. Parascandolo drops § 87(2)(b) fanny pack on the ground and Sgt. Dawson, Det. Parascandolo, Det. Lopez, Det. Anzalone, and PO Giacalone begin walking back to their police vehicles (Board Review 02).

Cell phone video, captured by § 87(2)(b) beginning at the 00:00 time stamp shows Det. Parascandolo open § 87(2)(b) fanny pack. Sgt. Dawson’s search of § 87(2)(b) and his fanny pack is not captured on this cell phone video (Board Review 06).

NYPD Patrol Guide 212-11 finds that a member of service may frisk a person during a Level III stop if at any point during the encounter, the member of service has a reasonable suspicion that the person is armed and dangerous. The officer may frisk for a deadly weapon or any instrument, article or substance readily capable of causing serious physical injury. An officer may not frisk a person's bag or other item of personal property unless the officer has reasonable suspicion to believe that the person is armed and dangerous and that the bag or item of personal property could contain a weapon and is within the person's reach. If the bag/item is soft, the officer should run her/his hands down the outside of the bag/item and open it only if she/he feels the contours of what she/he believes is a weapon (Board Review 16). Patrol Guide 212-11 derives its legal precedent from People v. De Bour, 40 N.Y.2d 210 (Board Review 22).

People v. Robinson, 125 A.D.2d 259 finds that in instances where a visual observation or a limited protective frisk of the detainee reveals a bulge, that bulge must look or feel like a weapon before the officer is entitled to subject the detainee to a further and more intrusive search. Once the police officer knows that the bulge is not a weapon, he has no right to continue the search (Board Review 26).

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended **Allegation B** be **Substantiated**.

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended **Allegation C** be **Substantiated**.

Allegation (D) Abuse of Authority: Detective Rudy Anzalone failed to provide § 87(2)(b) [REDACTED]

with a business card.

Allegation (E) Abuse of Authority: Detective Brad Parascandolo failed to provide § 87(2)(b) .

with a business card.

Allegation (F) Abuse of Authority: Detective Steven Lopez failed to provide § 87(2)(b) .

with a business card.

Allegation (G) Abuse of Authority: Sergeant Sean Dawson failed to provide § 87(2)(b) .

with a business card.

Allegation (H) Abuse of Authority: Police Officer Matthew Giacalone failed to provide

§ 87(2)(b) with a business card.

After § 87(2)(b) was searched, Sgt. Dawson, Det. Parascandolo, Det. Lopez, Det. Anzalone, and PO Giacalone immediately walked away from § 87(2)(b) then reentered their police vehicles. The officers left the location. None of the officers provided § 87(2)(b) with a business card or any kind of paperwork. None of the officers ever told § 87(2)(b) was he had been stopped (Board Review 09).

§ 87(2)(g)

§ 87(2)(b). Det. Parascandolo, Det. Lopez, and Sgt. Dawson stated that they did not provide § 87(2)(b) with a business card because of § 87(2)(b) “demeanor,” PO Giacalone and Det. Anzalone stated that they did not provide § 87(2)(b) with a business card because they didn’t know they were supposed to. Det. Parascandolo, Det. Lopez, Det. Anzalone, Sgt. Dawson, and PO Giacalone left the location and had no further interaction with § 87(2)(b) (Board Review 10-14).

TARU footage, beginning at the 1:04:11 time stamp, captures Det. Parascandolo hand § 87(2)(b) back his fanny pack and then Det. Parascandolo, Det. Lopez, Det. Anzalone, PO Giacalone, and Sgt. Dawson approach their vehicles without further interaction with § 87(2)(b). During this time, § 87(2)(b) is standing and recording the officers on his cell phone. At the 1:04:20 time stamp, as the officers begin to enter their vehicles, § 87(2)(b) approaches their cars to record their license plates. At no point does § 87(2)(b) appear irate nor does he take any actions to evade officers. At no point does any officer attempt to provide § 87(2)(b) with a business card (Board Review 27).

BWC video from Sgt. Dawson, beginning at the 02:30 time stamp, captures Sgt. Dawson, Det. Lopez, Det. Parascandolo, Det. Anzalone, and PO Giacalone begin approaching their police vehicles after the search of § 87(2)(b) has been completed. While the officers are walking towards their vehicles, § 87(2)(b) is recording them on his cell phone. At the 02:28 time stamp, Sgt. Dawson asks § 87(2)(b) for his name, which § 87(2)(b) declines to provide, then § 87(2)(b) asks for Sgt. Dawson’s name and Sgt. Dawson points to his shield and asks § 87(2)(b) if he can read it, and § 87(2)(b) points his cell phone at Sgt. Dawson’s shield. Sgt. Dawson, Det. Lopez, Det. Parascandolo, Det. Anzalone, and PO Giacalone enter their vehicles as § 87(2)(b) continues recording. The officers provide to leave the location and no officer provides § 87(2)(b) with a business card (Board Review 02).

Cell phone video, captured by § 87(2)(b) beginning at the 00:00 time stamp shows Det. Parascandolo open § 87(2)(b) fanny pack. An officer asks § 87(2)(b) for his name, which he declines to provide, then § 87(2)(b) focuses his camera on each officer’s shield. At the 00:12 time stamp, § 87(2)(b) asks Sgt. Dawson for his name and Sgt. Dawson says, “It’s right there” and motions towards his badge, which § 87(2)(b) captures on his cell phone video. Sgt. Dawson, Det. Parascandolo, Det. Lopez, Det. Anzalone, and PO Giacalone then immediately

reenter their police vehicles. At the 00:20 time stamp, § 87(2)(b) walks toward Sgt. Dawson's vehicle and records the license plate. At the 00:24 time stamp, an unknown female bystander asks why § 87(2)(b) was stopped, and Sgt. Dawson stops entering his vehicle and replies, "Hi, how are you? Oh, he's just selling marijuana." Sgt. Dawson and the other officers then enter their vehicles and leave the location without providing § 87(2)(b) with a business card (Board Review 06).

NYC Administrative Code 14-174 finds that an officer shall offer a business card to persons at the conclusion of any such activity that does not result in an arrest or summons, including pedestrian stops where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter at will (Board Review 15). NYPD Patrol Guide 212-11 finds that Level II and Level III encounters that do not result in a summons or arrest require officers to offer a Right to Know Business Card (Board Review 16).

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended **Allegations D, E, F, G, and H** be **Substantiated**.

§ 87(2)(g), § 87(4-b)
[REDACTED]

Civilian and Officer CCRB Histories

